

PRODUCER AGREEMENT (Fixed Products)

This document sets forth the terms of one or more separate Producer Agreements (each, an "Agreement"), between the Producer named below (referred to as "you") and one or more of the following:

Transamerica Financial Life Insurance Company Transamerica Life Insurance Company

(each individually referred to as "we", "us" or "the Company"). If you are appointed with more than one Company, you acknowledge and agree that this Agreement sets forth a separate and distinct agreement between you and each Company with which you are appointed. The rights, obligations, and responsibilities between you and one Company are separate and distinct from the rights, obligations, and responsibilities between you and any other Company with which you may be appointed. No Company will have responsibility or liability for the acts or omissions of any other Company with which you may be appointed under this Agreement.

1. APPOINTMENT

We appoint you to sell our Company's fixed products ("Product" or "Products"), as identified in the Commission Rate Schedule ("Schedule") applicable to the type of product involved, pursuant to the terms of this Agreement. You will comply with all applicable laws and regulations of the states and jurisdictions in which you sell Products, without limitation, obtaining and maintaining any necessary licenses for the solicitation of insurance and you agree to diligently devote yourself to the business of this appointment under this Agreement.

1.1 TERRITORY; NON-EXCLUSIVITY

Unless otherwise specified by us, you are authorized to solicit applications for our Products in any jurisdiction in which we are licensed to transact insurance and in which you are licensed and authorized to represent us in accordance with applicable state laws and regulations. We reserve the right to limit your territory and/or the Company that you are authorized to represent and/or the Products that you are authorized to sell and service at any time.

You are not obligated to represent us exclusively, and this Agreement does not give you exclusive rights in any area.

You understand and agree that unless you are licensed in the State of New York and TFLIC is a party to this Agreement, you will not solicit or accept applications within the State of New York. In states other than New York, you agree that you will not solicit or accept any application for a policy to insure a person who is a resident of the State of New York or which is to be owned by a resident of the State of New York or an entity located in the State of New York unless all solicitation and sales activities take place outside the State of New York and comply with our rules and procedures regarding New York residents.

1.2 INDEPENDENT CONTRACTOR

You are an independent contractor. Nothing contained in this Agreement is to be construed to create the relation of employer and employee, partnership, or joint venture between the Company and you. You may exercise your own judgment as to the time and manner in which you may perform the services required to be performed by you under this Agreement. We may, from time to time, prescribe rules and regulations concerning the conduct of the business covered by this Agreement which do not interfere with such freedom of action.

You are responsible for the selection, hiring, management, payroll, employment taxes, benefits, and all other

employment-related obligations of any employees you choose to employ.

You are not an employee of the Company and therefore are not eligible for any benefit plans sponsored by the Company for its employees. You are responsible for determining and providing, at your expense, for all of your own income tax obligations, workers' compensation insurance, unemployment insurance, benefits, business licenses, office space, office supplies, and equipment and any other costs of doing business.

You will not represent to the public, via social media or other means, that you are an employee of the Company.

2. SOLICITATION OF APPLICATIONS

We will inform you from time to time which Products you are authorized to sell. Solicitation of applications for insurance authorized under this Agreement will be performed by you or by Assigned Producers or Solicitors in accordance with the terms of their agreements with us.

An Assigned Producer is a person who has been designated by us to solicit applications for insurance under your direction. A Solicitor is a person who has been designated by us to solicit applications for insurance under your direction who is compensated solely by you.

2.1 PRODUCERS

You may recommend that we enter into sales agreements with other producers for sale of our Products, but we are not obligated to do so. We will not enter into such an agreement unless you and we agree regarding whether the recommended person will be designated as an Assigned Producer or Solicitor. You have no authority to modify or amend any such agreement.

At our option, we may refuse to contract with or appoint any proposed producer and may terminate any agreement with or appointment of a producer. Except as otherwise agreed, payment of all commissions, expense allowances and other compensation (collectively referred to herein as "commissions") earned by Assigned Producers will be made directly by the Company.

From time to time, we may prescribe rules regarding the transfer of Assigned Producers or Solicitors.

2.2 LICENSING

Neither you nor any Assigned Producer or Solicitor may engage in any activities under this Agreement unless and until you or they are properly licensed and appointed to perform such services in the particular state or jurisdiction involved in accordance with all applicable laws, rules and regulations, including, but not limited to, any certification or continuing education requirements.

You agree to undertake and pay for all actions necessary to acquire and maintain any necessary licenses for yourself, including but not limited to renewal fees. We will take the necessary actions, including the payment of the initial applicable fees, to appoint you to represent us in the state or jurisdiction in which you reside. We will appoint you to represent us in additional states at your expense. You specifically agree to reimburse the Company of any expenses incurred as a result of your relationship with the Company.

2.3 NON-REPLACEMENT COVENANTS

While this Agreement is in effect and for a period of two (2) years after termination of this Agreement, you agree that you will not encourage, aid or abet any other insurer or broker-dealer, or their customers, clients, employees, agents or registered representatives, to engage in a pattern or practice of replacing or attempting to replace any of the Company's products with fixed or variable products of other life insurance companies.

3. RESPONSIBILITIES OF THE PRODUCER

Given the regulatory obligations of the Company and in support of purchasers' trust in our products, the Company may, from time to time, notify you of laws, governmental regulations and the Company's rules and regulations which may be applicable to your activities or the activities of producers who act through you. You agree to promptly communicate this information to your employees and producers, as appropriate. You are responsible for your employees' and producers' compliance with all laws and regulations, regardless of whether we provided notice. To the extent they do not conflict with the terms of this Agreement, you will conform to the rules and regulations of the Company now or hereafter in force. You are responsible for your employees' and producers' compliance with all Company rules and regulations. You agree to review policy applications submitted through you, and you agree to notify the Company if you become aware of actions by employees or producers (including you) which violate laws, governmental regulations or the Company's rules and regulations. You are responsible for the actions and performance of your employees and producers in connection with this Agreement. You agree to notify the Company if you learn of the conviction of you or any of your employees or producers of any felony or other serious crimes. The Company agrees that it will not hold you liable for any matter of which you were not aware and of which you could not reasonably have been expected to have been aware in the normal course of your business activities. This provision shall not be construed to alter the independent contractor relationship of the parties as provided in this Agreement.

3.1 LIMITATION OF AUTHORITY

You will not alter, modify, waive or change any of the terms, rates or conditions of any advertisements, receipts, or Products in any respect. You will not use any advertising or sales material relating directly or indirectly to the Company or the Products unless it is provided by the Company or approved by the Company in writing prior to use. You have no authority to obligate us in any manner whatsoever nor to receive monies due to us, except as otherwise provided in this Agreement or as may be authorized in writing by us. You will not refer to the existence of this Agreement or make any news release, public announcement, denial or confirmation of all or any part of the subject matter of this Agreement without Company's prior express written approval.

3.2 COMPANY RECORDS

All documents, records, software and other data and information, in whatever form they may be, which pertain to the Company's policyholders or any other business of the Company, are and will remain the property of the Company. Any such property in your possession shall be at any time and all times open to inspection by the Company or its authorized representative(s), and upon termination of this Agreement you will promptly turn all such property over to the Company or its authorized representatives. You acknowledge that all documents, records, software and other data, information and supplies ("Confidential Information") referred to in this Section 3.2 are confidential and proprietary to the Company, and you agree to preserve the confidentiality and privacy of the Company in all of the same; and you further agree that you will not, without the Company's prior written consent, release or disclose any of the same or their contents to any person, or otherwise use any of the same or their contents in any manner, except in furtherance of the business of this Agreement or as required by legal process.

Confidential Information shall not include any information disclosed that you can demonstrate (i) previously was in its possession, as shown by its pre-existing records, without violation of any obligation of confidentiality; (ii) was received from a third party without violation of any obligation of confidentiality; (iii) was publicly known and made generally available prior to such disclosure; (iv) becomes publicly known or made generally available to the public at a later date through no fault of you, and only then after such later date; (v) was independently developed without use of or reliance upon any Confidential Information by you, your employees, or consultants, or was explicitly approved for release by Company.

If you are required to disclose Confidential Information by order of a court of competent jurisdiction, administrative agency or governmental body, or by subpoena, summons, or other legal process, you

shall provide Company with prompt written notice of such required disclosure so that Company may seek a protective order or take other appropriate action, cooperate reasonably with Company in connection with Company's efforts to seek such relief, and thereafter to disclose only the minimum information required to be disclosed in order to comply. Both parties retains the right, in their discretion, to disclose the terms and conditions of this Agreement, including without limitation amounts paid hereto, to any governmental agency or regulatory body as necessary and appropriate.

The obligations of confidentiality under this Section 3.2 shall continue for a period of five (5) years following expiration or early termination of this Agreement

Nothing contained in this Section 3.2 is intended to restrict your right to retain possession of your records and other materials relating solely to your Assigned Producers and Solicitors.

3.3 COLLECTION AND REMITTANCE OF COMPANY MONEY

Where authorized by us, you may accept premiums in accordance with our rules and regulations in force at the time of payment. We have the right at any time to revoke such authority in whole or in part and to limit it in any way. ALL MONIES OR SECURITIES RECEIVED BY YOU AS FULL OR PARTIAL PAYMENT OF PREMIUMS OR FOR ANY OTHER ITEM WITHOUT EXCEPTION, SHALL BE HELD BY YOU IN TRUST SEPARATE FROM YOUR OWN OR OTHER FUNDS AND WILL BE IMMEDIATELY DELIVERED AND PAID TO THE COMPANY. Such remittances must be applied to the relevant item. You are not authorized to deposit any such monies or checks in your own account or any trust account, nor to accept any check made payable to you for any premium or other item.

You will promptly remit to the Company any and all monies received on behalf of the Company as payments on Products, and you have no right or authority to receive or collect monies for and on behalf of the Company at any time or for any purpose except the initial premium necessary to put the Product in force.

3.4 OWNERSHIP

As between Company and you, all trademarks, service marks, trade names, logos, domain names or other words, symbols or indicia of origin, identifying the Company or the Products or services (collectively, the "Marks") are and will remain the exclusive property of the Company or its licensors. You will not acquire any rights in the Marks, except the limited use rights specified in Section 3.5 below. You will not register, directly or indirectly, any trademark, service mark, trade name, company name, Internet domain name, or other proprietary or commercial right, that is identical or confusingly similar to a Mark, or constitutes a translation of a Mark. All goodwill arising from the use of the Marks inures to the exclusive benefit of the Company or its licensors.

3.5 ADVERTISING AND USE OF MARKS

You agree that you will not place into use, or distribute to any person, any advertising, sales material or other document (including, without limitation, illustrations, telephone scripts and training materials) (collectively, "Advertising Materials") referring directly or indirectly to the Company or to any Product, or cause, authorize or permit any producer or other person to do so, without our prior written consent. You agree that you will not use the name of the Company or its Marks on any business card, letterhead or marquee or in any directory listing, or in any other manner, or cause, authorize or permit any producer or other person to do so, without our prior written consent. You agree that you will not use any of the Marks without our prior written consent. If Company provides you with approval to use of the Marks or Advertising Materials, Company reserves the right to revoke such approval at any time.

If you are permitted to use the name of the Company or the Marks associated with the Products that you are authorized to sell, it will do so exclusively to advertise and promote the Company and its Products and services. All Advertising Materials will (i) clearly identify the Company or its licensors as the owner of the Marks, (ii) conform to the Company's then-current trademark and logo guidelines, (iii) conform to the

Company's advertising compliance guidelines and (iv) otherwise comply with any notice or marking requirement under applicable law. Before publishing or disseminating any materials bearing a Mark, you will deliver an exact copy of the materials to the Company for prior approval. If the Company notifies you that the use of the Mark is inappropriate, you will not publish or otherwise disseminate the materials until they have been modified and approved by the Company.

3.6 INDEMNIFICATION

- (i) **Indemnification for Producer Acts and Omissions.** You agree unconditionally to indemnify and hold us harmless the Company and each of the Company's directors, officers, affiliates, stockholders, employees and representatives from any liability, loss, claim, regulatory proceeding, regulatory investigation, damage, cost or expense (including legal and other expenses and attorneys' fees reasonably incurred), in each case to the extent arising from, related to or based upon the breach of any provision of this Agreement by you or your employees, officers, agents or other persons who act on your behalf or the omission, acts, negligence, bad faith, fraud or misconduct of you or any of your employees, officers, agents or other persons who act on your behalf or any proscribed use (as set forth under this Agreement) of the Marks by you or your employees, officers, agents or other persons who act on your behalf.
- (ii) **Indemnification for Producer Personnel.** You shall defend, indemnify, and hold harmless Company, its Affiliates and all of their directors, officers, personnel, and their successors and assigns from any and all claims arising out of or relating to withholding taxes, unemployment or workers compensation, misclassification of your employees or independent contractors, violations of equal employment laws and regulations, violations of the Fair Labor Standards Act, employee benefits or compensation, employment claims, or any other claim, demand, liability, or loss of any nature relating to your responsibilities under this Agreement.
- (iii) **Conditions Precedent to Producer Indemnification.** For any indemnification for claims regarding your acts and omissions, or personnel, Company shall promptly notify you in writing of any claim, demand, suit or proceeding, together with any and all documentation related to the claim, demand, suit or proceeding. You will have full authority to control the defense of the suit at your own expense; however, no admission of liability on behalf of Company will be made without prior written consent from Company. You may not settle any claim unless the claimant gives a full unconditional release of all liability. Company may participate at its own expense. The failure of Company to seek an indemnity under this Section or to provide you with prompt notice does not relieve you of your obligations under this Section 3.6, except to the extent the failure to promptly notify you causes you irreparable harm. No settlement that prevents you from fulfilling your obligations under this Agreement, may be made without Company's prior written consent.
- (iv) **Company Enforcement of Intellectual Property.** You shall promptly give notice to Company of any act of infringement, passing-off or unauthorized use of any of the Marks, or any trademarks or service marks confusingly similar thereto, which comes to your attention. Company may take any action in its own name and at its expense to prevent or enjoin any such act, but shall have no obligation to take any action. You shall cooperate fully in any such action but shall have no right to take any independent action. Company may settle any dispute relating to the use of the Marks without notice or compensation to you, and shall retain the proceeds of any settlement or proceeding.
- (v) **Company Defense of Third Party Intellectual Property Claims.** If any third party claim, action or proceeding is commenced by any person against you arising from your use of any of the Marks, you shall promptly provide written notice thereof to Company. Company shall, in its discretion, be entitled to defend or take steps to settle any such claim, action or proceeding, but shall have no obligation to do so. You will provide all reasonable assistance, execute any document necessary, and provide any evidence and available information to Company. If Company chooses not to defend such claim, action or proceeding, you may do so at your expense but shall keep Company fully apprised of all major steps in the litigation. However, you may not settle any such claim, action or proceeding without the prior written consent of Company.

3.7 ERRORS AND OMISSIONS

Failure to maintain, at your own expense, errors and omissions insurance covering your activities under this agreement will be deemed a material breach of this agreement. The amount of coverage shall not be less than that specified by us from time to time. You shall provide us with satisfactory written evidence of such errors and omissions insurance upon our request.

3.8 ANTI-MONEY LAUNDERING

You must comply with all applicable anti-money laundering laws, rules, regulations and government guidance, including any reporting, recordkeeping and compliance requirements. These include requirements to identify and report currency transactions and suspicious activity, to verify customer identity and to conduct customer due diligence. In addition to applicable laws, the Company has implemented an anti-money laundering program which includes requirements for reporting suspicious activity and providing anti-money laundering training to the Company's employees, insurance agents, and insurance brokers. You agree to comply with the Company's anti-money laundering policies and reporting and training requirements.

3.9 ELECTRONIC IMAGING AND TRANSMISSION OF DOCUMENTS AND INFORMATION

You agree to comply with the Company's requirements for electronic imaging and transmission of documents.

3.10 SUITABILITY

You agree to comply with all applicable laws, regulations and Company policies pertaining to requirements that Products and transactions be suitable for the purchaser and/or policyholder.

3.11 DATA PROTECTION, PRIVACY AND SECURITY

- (i) You agree that by signing this Agreement that you are certifying compliance with the Company's Privacy Compliance Policies, which are attached hereto as Exhibit A, and incorporated by reference herein.
- (ii) You represent that by signing this Agreement that you are agreeing to and certifying compliance with the Data Protection Framework attached hereto as Exhibit B and incorporated by reference herein.

3.12 COMPANY RULES, REGULATIONS AND CODE OF PROFESSIONAL CONDUCT

To the extent they do not conflict with the terms of this Agreement, you will conform to the rules, regulations and Code of Professional Conduct of the Company now or hereafter in force. We may change the Company's rules, regulations and Code of Professional Conduct from time to time, and you agree to comply with any such changes. Such rules and regulations and Code of Professional Conduct will constitute a part of this Agreement. You shall effectively communicate the Company's rules, regulations and Code of Professional Conduct to your sub-agents, solicitors and employees and be responsible for their compliance with the Company's rules, regulations and Code of Professional Conduct. This provision shall not be construed to alter the independent contractor relationship of the parties as provided in this Agreement.

3.13 NEW YORK REGULATION 187

For Producers that have appointments with Transamerica Financial Life Insurance Company, the following terms shall apply.

- (i) **Compliance.** You will comply with, and ensure that your Assigned Producers and Solicitors comply with, the requirements of New York Regulation 187 ("NY Reg 187") applicable to producers,

including, without limitation, compliance with all applicable best interest, suitability, training, disclosure, information collection, documentation and determination requirements, when making recommendations (as such term is defined in NY Reg. 187, herein "recommendations") involving Products delivered or issued for delivery in the State of New York ("NY Product"). We will consider the submission of an application or transaction request with respect to a NY Product by you to us to constitute a representation that you complied with all requirements of NY Reg. 187 as in effect at the time of such submission applicable to you and any Assigned Producers or Solicitors. You agree that each life insurance application submitted to us for NY Products shall be accompanied by a Producer Representation, a form of which is attached as Exhibit C, duly executed by the selling agent shown on the application.

- (ii) **Supervision System.** We hereby delegate to you the obligation to establish and maintain a system of supervision for recommendations by you of sales transactions (as such term is defined in NY Reg. 187, herein "sales transactions") involving NY Products. This system must include, but not be limited to, standards and procedures for: (i) the collection of a consumer's suitability information with respect to sales transactions involving NY Products; (ii) the documentation and disclosure of the basis for any recommendation with respect to sales transactions involving NY Products; and (iii) the auditing and/or contemporaneous review of recommendations of sales transactions involving NY Products to monitor you and your Assigned Producers' or Solicitors' compliance with the obligation to act in the best interest of consumers. You will maintain appropriate records evidencing this supervision system. We expect your cooperation in connection with our reasonable requests to audit the supervision functions carried out by you.
- (iii) **Training.** To the extent that you desire to use training other than the training we provide or approve to satisfy the training requirements of NY Reg. 187, you must provide information about such other training to us for consideration, and will not implement such training without our prior written approval, which we will not unreasonably withhold.

4. COMPANY RIGHT OF ACTION

We are not obligated to accept any business produced by you or by any individual or entity associated with you, including an Assigned Producer or Solicitor. We may reject applications for insurance without specifying the reason or cancel any policy for any reason and return the premium. We may contact any applicant, owner, or insured directly or indirectly for any purpose, including the purpose of marketing other products of ours or of our affiliates, to allow our affiliates to do the same, and to provide information about any applicant, owner or insured to our affiliates for such purpose. In addition to all other rights reserved to us in this Agreement, we reserve the right, in our sole discretion and without notice to you, to do any of the following:

- (i) modify, amend, or change any policy form and/or premium rate;
- (ii) fix or change maximum and minimum limits on the amount for which any policy form may be issued;
- (iii) modify or alter the conditions or terms under which any policy form may be sold or regulate its sale in any way;
- (iv) discontinue or withdraw any policy form from any or all geographic area(s) or market segment(s), without prejudice to continuation of such form in any other area or market segment;
- (v) cease doing business in any area;
- (vi) reduce or otherwise adjust commissions on conversions, exchanges, replacements or other similar requests;
- (vii) modify any Schedule or Exhibit under this Agreement from time to time by publishing, either in writing or electronically, a revised Schedule or Exhibit, which shall govern new applications for Products executed on or after the date specified in the revised Schedule or Exhibit;
- (viii) determine the method, frequency and minimum threshold amount for commissions payments and statements; and/or
- (ix) revise our rules which by this reference are made part of this Agreement.

5. COMPENSATION

General – The applicable “Schedule” means the Commission Rate Schedule or any other documentation setting forth the rates for the types of Products involved published by us from time to time for the type of Product involved. Commission Rate Schedules are subject to change without notice. Copies may be obtained at any time.

For each Product sold by you, we will pay you commissions as set forth in the applicable Schedule less any amount paid to Assigned Producers for which you are directly or indirectly responsible. You may also be eligible for compensation under other programs established by us from time to time. Payment of commissions will be subject to the terms and conditions of this Agreement and to our rules and regulations. Such rules and regulations may be changed by us at any time without notice and without your consent.

The commissions and any other compensation payable by us to you will be payment in full for all services performed by you. Except as we may otherwise agree, you are not entitled to reimbursement for any expenses incurred by you.

5.1 PAYMENT OF COMMISSIONS AND OTHER COMPENSATION

- (i) **Repayment of Commissions.** If any commission or other compensation to which you are not entitled under the terms of this Agreement is paid to or retained by you, you will pay the same to the Company upon demand. If we refund premium or return policy values or waive surrender charges on any policies for any reason, then no commissions will be payable with respect to said premiums and any commissions previously paid must be returned to us. In case of any provision requiring a refund of commissions or other compensation, we may, at our election and to the extent allowed by law, debit your account for the amount of the refund without demand or notice, or may demand the refund, or both, but debiting your account in such manner will not relieve you of your obligation to make the refund.
- (ii) **Policyholder Service.** If you are unwilling or unable to provide an acceptable level of service to any policyholder, you will not be entitled to continued commissions with respect Products of such policyholder.
- (iii) **Changes in Compensation.** We reserve the right to modify the Schedules under this Agreement by publishing from time to time revised Schedules; such revised Schedules will govern new business applications executed on or after the date specified in the revised Schedules.
- (iv) **When Due.** Commissions will be paid in accordance with our normal commission processing schedule. Commissions will be payable only on premiums paid and applied to and accepted by us on policies which were produced by you. No premium will be considered paid and applied to the Company until it has been actually collected and transmitted to us and recorded on our records. Commissions and other compensation will accrue only as such premiums otherwise would become due. Premiums may include fees or charges that are not commissionable.
- (v) **Commissions Paid in Advance.** If we pay you a commission or other compensation on a premium which is or becomes due but which has not yet actually been paid to the Company, and if such premium is not paid and applied to the Company, you will refund any commission or other compensation which you have received on such premium.
- (vi) **Split Commissions.** If an application for a Product is procured by you and other agents of the Company, the commission will be divided among you and the other agents as indicated in the new business application unless the Company receives written instructions to the contrary signed by you and each other agent.
- (vii) **Conditions.** Commissions and any other compensation under this Agreement will be payable to you only if and so long as you are in existence and are continuously and properly licensed and appointed in accordance with applicable state laws and regulations to transact insurance business for us and we may legally pay such commissions and other compensation.
- (viii) **Accounting Year.** We reserve the right at any time and from time to time, without notice to you, to change the period comprising our accounting year or subdivisions thereof.

- (ix) **Securities Products.** We will not pay commissions directly to you for selling our securities products that are listed in an agreement that is in effect between the Company, its principal underwriter, and a broker-dealer of which you are a registered representative, except that we may elect to do so if we are an affiliate of your broker-dealer. In the event that your broker-dealer requires fixed product commissions to be paid directly to the broker-dealer or its affiliated insurance agency, commissions due under this Agreement will be paid to the broker-dealer or its affiliated agency. In either case, payment by us to your broker-dealer will fully discharge us of our obligations with respect thereto.
- (x) **Your Account.** We will provide you with periodic statements of your account. If the net amount due to you at any time is less than the amount specified by us from time to time, commissions will not be paid until this amount is reached.
- (xi) **Replacement.** The Company may choose whether to pay the same commissions on the conversion of term life insurance to another product as it would pay on a new product sale. The Company may choose whether to pay commissions on a reinstated product to the producer responsible for the reinstatement or the producer who originally sold the product, and may pay overriding commissions accordingly. The Company will determine the commissions, if any, that the Company may pay to you with respect to a product that the Company issues on an insured within twelve (12) months after a halt in the payment of premiums on a product previously issued by the Company or one of its affiliates on the same insured, or within twelve (12) months after the previously issued product of the Company or its affiliate lapses or is surrendered in whole or in part.

5.2 VESTING

Unless otherwise provided in a Schedule, all commissions shall cease ten years following the date of issue of the Product. We may stop paying commissions earlier upon our determination that you:

- (i) failed to comply with our rules and regulations or the laws of any applicable state or jurisdiction or regulations of the Department of Insurance thereof; or
- (ii) failed to conform to the terms and conditions of this Agreement or any other existing or future agreement with us; or
- (iii) have been convicted of a felony or any state or jurisdiction revokes, suspends or fails to renew your license to sell insurance; or
- (iv) committed any illegal, dishonest or fraudulent acts in connection with any business of ours; or
- (v) engaged in a pattern or practice of inducing or attempting to induce any policyholders to discontinue the payment of premiums on or to release or surrender policies and products in the Company whether or not covered by this Agreement; or
- (vi) have so conducted yourself as to injure our standing or good name in the community or elsewhere.

6. LIEN AND OFFSETS

You grant us a first lien on all commissions and any other compensation payable by us to you under this Agreement or under any other existing or future agreement with us, as security for the payment of any existing or future debit balance or other indebtedness of yours to us. We may at any time and from time to time, with or without notice or judicial action, exercise our lien by offsetting such indebtedness against any commissions and other compensation otherwise due to you under this Agreement or under any agreement between you and us or one of our affiliates. These liens shall not be extinguished by the termination of this Agreement or any other agreement.

All debit balances and other indebtedness of yours to us will be debited to your commission account, but debiting your commission account will not relieve you of your obligation to repay the indebtedness. You may not offset against any such indebtedness any compensation accrued or to accrue under this Agreement or under any other agreement with us.

You will be liable to us for payment of any debit balance of an Assigned Producer, whether or not incurred by reason of a wrongful act of the Assigned Producer, including indebtedness incurred in connection with the

conduct of business under this Agreement. All debit balances or other indebtedness owed to the Company by an Assigned Producer will first be debited to the Assigned Producer's commission account.

In the event we recover from you any debit balance or other indebtedness of an Assigned Producer, we will, upon request, assign to you our rights against the Assigned Producer with respect to such debit balance or other indebtedness to enable you to pursue recovery from the Assigned Producer.

While an Assigned Producer has a debit balance for which you are responsible, we will not pay any commissions or other compensation on business produced by the Assigned Producer while operating under your supervision which may accrue to the Assigned Producer's commission account without your consent. At any time in our sole discretion, we may debit your commission account with the debit balance of the commission account of any Assigned Producer, and such action may be taken whether or not we have endeavored to secure payment of the debit balance from the Assigned Producer. If we elect to debit your commission account with the debit balance of an Assigned Producer's commission account, then any credit thereafter accruing to such Assigned Producer's commission account will in like manner be reflected as a credit to your commission account.

We will be under no obligation to pay any commissions or other compensation to you, your heirs, executors, administrators or assigns, under this Agreement or under any other existing or future agreement with us now or hereafter existing as long as your commission account has a debit balance. Any debit balance of your commission account shall be payable to us upon demand and shall bear interest, payable monthly, at the rate declared by us from time to time. Any future change in interest rate may, at our option, be applied to the then remaining balance of any debit balance theretofore created as well as to debit balances thereafter created.

7. DISPUTES AND LITIGATION

All parties agree to cooperate fully with each other in the resolution of all matters arising out of the business of this Agreement.

7.1 COMPLAINTS, CLAIMS AND OTHER MATTERS

You agree to notify us promptly of any complaint, claim or dispute involving an applicant, Product, policyholder or producer. You shall notify us immediately upon your receipt of any subpoena, summons or other notice of suit or any regulatory authority inquiry with respect to any of the transactions contemplated by this Agreement (including your disqualification to sell insurance) and shall include with such notice a copy of any documents you receive.

You will not litigate any dispute with an applicant or policyholder, on any matter relating to the business of this Agreement, without our prior written consent.

We may settle any claim against us or you arising out of the business of this Agreement.

7.2 EXPRESS WAIVERS

WAIVER OF DAMAGES. EACH PARTY KNOWINGLY, VOLUNTARILY AND INTENTIONALLY WAIVES ANY CLAIM TO RECOVER PUNITIVE, EXTRA-CONTRACTUAL, EXEMPLARY AND NON-COMPENSATORY DAMAGES AGAINST THE OTHER PARTY.

WAIVER OF RIGHT TO JURY TRIAL: EACH PARTY KNOWINGLY, VOLUNTARILY, AND INTENTIONALLY WAIVES THE RIGHT TO A TRIAL BY A JURY WITH RESPECT TO ANY LITIGATION ARISING OUT OF OR RELATING TO (I) THIS AGREEMENT, OR (II) (TO THE EXTENT NOT SPECIFICALLY SUBJECT TO A SEPARATE WRITTEN AGREEMENT BETWEEN THE PARTIES) THE RELATIONSHIP BETWEEN THE PARTIES TO THIS AGREEMENT.

7.3 LIMITATIONS

The parties agree that, to the greatest extent allowed by law, any claim, suit or other proceeding (whether sounding in contract, tort or otherwise) arising out of or relating to (i) this Agreement or (ii) the relationship between the parties, must be brought within the earlier of expiration of the applicable statute of limitations or four (4) years after the date on which the action constituting the basis for any such claim occurred.

8. TERMINATION AND SUSPENSION

- (i) Unless earlier terminated in accordance with subsection (ii) of this Section, the term of this Agreement shall commence on the Effective Date and is effective until terminated as provided herein ("Term").
- (ii) This Agreement may be terminated if any of the following events occur: (1) for convenience by either party or (2) either party materially breaches this Agreement, and the non-breaching party provides the breaching party with thirty (30) days advance written notice of termination and such breach is not remedied within such thirty (30) day period. For purposes hereof, a party is deemed to be in default if it: (a) materially breaches any of its duties, obligations, or responsibilities under this Agreement; (b) becomes insolvent, is or becomes a party to any voluntary or involuntary bankruptcy or receivership proceeding or any similar action affecting the financial condition or property of the party and the proceeding has not been dismissed within thirty (30) business days of commencement; (c) ceases conducting any business necessary to carry out the provisions of this Agreement; (d) makes a general assignment for the benefit of creditors; (e) violates any of the provisions of this Agreement relating to use of the Marks or Confidential Information. The foregoing enumeration of events constituting material default is not exclusive. In no event will Company be liable for punitive, indirect, special, incidental or consequential damages for any termination for convenience pursuant to this Section 8.
- (iii) Upon termination or expiration of this Agreement, you shall promptly deliver any and all Advertising Materials featuring Company's Products and services and/or the Marks. In addition, the parties shall perform all undertakings as described in this Agreement with respect to each party's Confidential Information. The expiration or termination of this Agreement, for any reason, will not release either party from any liabilities or obligations hereunder which: (1) the parties have expressly agreed will survive expiration or termination; (2) remain to be performed or by their nature would be intended to be applicable following expiration or termination, such as warranties and indemnification rights; or (3) pertain to ownership or licenses of the Marks.
- (iv) Upon notice to you, we may suspend your authority to act under this Agreement.
- (v) From time to time, we may establish minimum production requirements applicable to this Agreement and your failure to meet such minimum production requirements may result in Company's termination of this Agreement.

9. NOTICES AND COMMUNICATIONS

All notices and other binding communications under this Agreement, including amendments, must be in writing and shall be deemed to be validly given if sent by mail, fax, or by email to the other party at the most recent email address, fax number or address provided by the other party. In addition, notice shall be considered validly given if published by us on any website we use to communicate with you. Either party may change its address for notices and communications by notifying the other party in accordance with this section.

10. MISCELLANEOUS PROVISIONS

Certain provisions of this Agreement are emphasized for the convenience of the reader. Nevertheless, all provisions apply equally. The headings and titles of paragraphs contained in this Agreement are for convenience only and have no effect upon the construction or interpretation of any part of this Agreement.

10.1 ENTIRE AGREEMENT

This Agreement (including all Exhibits and Schedules hereto) contains the entire agreement between the parties as to matters set forth herein and supersedes any prior or contemporaneous understandings or agreements with respect to such matters.

10.2 AMENDMENTS

We reserve the right to amend this Agreement from time to time by providing at least thirty (30) days' prior written or electronic notice to you of the terms and provisions of any such amendment, and you shall be deemed to have agreed to such amendment unless we have received your written objection within fifteen (15) days after the date our written or electronic notice was sent. We will not be bound by any amendment, promise, agreement, understanding or representation regarding the Agreement unless the same is made by an instrument in writing, or an electronic copy of a writing specifically sent by us to you electronically, and signed by one of our officers, which expresses by its terms an intention to modify the Agreement.

We reserve the right to modify any Schedule or Exhibit under the Agreement from time to time by publishing, either in writing or electronically, a revised Schedule or Exhibit, which shall govern new applications for Products executed on or after the date specified in the revised Schedule or Exhibit.

10.3 NO IMPLIED WAIVERS

No failure to exercise or delay in exercising any right or provision of this Agreement, or to insist upon strict performance of its terms, shall constitute a waiver. No waiver of any right or provision under this Agreement shall be construed as a further or continuing waiver of such right, or as a waiver of any other right. Acceptance by the Company of performance by you while you are in breach of this Agreement shall not constitute a waiver of any right or remedy the Company may have regarding such breach or any other breach of this Agreement. Any waiver must be in writing and signed by the party granting it. Any waiver by the Company must be signed by the Company's president or vice president.

10.4 AGREEMENT NON-ASSIGNABLE

You may not assign this Agreement or any of your rights, obligations, authorities and benefits provided hereunder without our prior written consent.

10.5 SEVERABILITY

The provisions of this Agreement are severable. It is the intention of the parties that the provisions of this Agreement shall be enforced to the extent permitted under applicable law. If any provision of this Agreement, or the application of this Agreement to any person or circumstance, is deemed invalid or unenforceable to any extent, the remainder of this Agreement and the application of its provisions to any other person or circumstance shall not be affected. In the event any provision is deemed invalid or unenforceable under the laws of a particular jurisdiction, such provision will be disregarded in that jurisdiction only.

10.6 INDEPENDENT AGREEMENT

The compensation provided by this Agreement is separate from any compensation or consideration provided under any other agreement you may have with us or with one of our affiliates. Except as set forth in our applicable rules and regulations, your activities under this Agreement will not be taken into account for purposes of any compensation or benefits under any such agreement.

10.7 APPLICABLE LAW

This Agreement shall be construed in accordance with the substantive and procedural laws of the State of Iowa, without giving effect to principles of conflict of laws. If conflict or choice of law rules would result in the application of the law of another jurisdiction, each Party voluntarily waives such rules and agrees that the substantive law of Iowa shall nonetheless govern.

10.8 SURVIVAL

The following provisions will survive the termination of this Agreement: Sections 2.3, 3 (including all subparts), 5, 5.2, 6, 7 (including all subparts), 8, 10.4, 10.5, 10.6, and 10.7.

10.9 EXECUTION

This agreement will be deemed executed and effective as of the date you are appointed to represent the Company with at least one state insurance department. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which constitute one and the same instrument.

11. CORPORATIONS; PARTNERSHIPS

The additional provisions set forth below will apply if you are a corporation, partnership, or any entity other than an individual.

11.1 OFFICIAL ACTIONS

You may designate one or more individuals to deal with us on your behalf. Such designation must be made by your board of directors if you are a corporation, by your managers if you are a limited liability company, or by any general partner if you are a partnership. In the absence of a designation, we may (but are not obligated to) deal with your president or any vice president (if you are a corporation or limited liability company) or any general partner (if you are a partnership).

11.2 CHANGES

You agree to inform us of any changes in your legal structure, and of any changes in your officers or partners. You also agree to inform us of any transfer of your stock or partnership interests.

11.3 STATUS

We may, from time to time, require you to provide us with evidence of your continued existence and good standing.

By signing below, you certify that: you have not been convicted of a felony involving theft, dishonesty or breach of trust, are not in violation of the Violent Crime Control and Law Enforcement Act of 1994 (the "1994 Crime Act") if the Company enters into this Agreement with you, and that you will immediately advise the Company of any situation that would cause you to be in violation of the 1994 Crime Act. You have read and understand the Company's Code of Professional Conduct and agree to abide by its terms. You agree to foster high standards of ethical behavior and to adhere to the Company's policies and procedures concerning the sale of our insurance products. You acknowledge that you have read and understand this Agreement, and agree to be bound by its terms.

COMPLETE SECTION 1 OR 2 OF THE FOLLOWING:

1. INDIVIDUAL PRODUCER

Printed Name

Signature

Date

Note: If completing section 2, the Guaranty portion must be completed in order to process the agreement.

2a. NON-INDIVIDUAL PRODUCER
(Corporation, Agency, etc.)

Name of Entity

Printed Name of Authorized Officer

Signature of Authorized Officer

Title

Date

2b. GUARANTY

The undersigned hereby unconditionally guarantees the full and timely payment of any and all indebtedness of the Non-Individual Producer to the Company(ies).

Printed Name of Individual

Signature of Individual

Date

EXHIBIT A

GLBA AND HIPAA BUSINESS ASSOCIATE PROVISIONS

1. Compliance with GLBA Generally. With respect to your use and disclosure of Nonpublic Personal Financial Information (as defined below), you shall comply with the requirements of the Gramm-Leach-Bliley Act (15 U.S.C. sec. 6801 et seq.) and state insurance regulations implementing Title V and their respective rules and regulations ("GLBA"). Compliance with GLBA includes, but is not limited to, the DP Framework provisions set forth in Exhibit B and the following:

1.1. You may use or disclose Nonpublic Personal Financial Information only to perform your services under this Agreement, as specifically provided in Section 4.3 below, and as required by law. "Nonpublic Personal Financial Information" means personally identifiable financial information and includes any list, description, or other grouping of consumers (and publicly available information pertaining to them) that is derived using any nonpublic personal information; provided, however, that the above definition shall be superseded and replaced to the extent that the definition of Nonpublic Personal Financial Information under GLBA Section 509, subsection (4), as the same may be amended or superseded from time to time, differs from this definition.

1.2. You shall maintain appropriate, but no less than those set forth in Exhibit B, administrative, physical and technical safeguards to prevent prohibited uses or disclosures of Nonpublic Personal Financial Information.

1.3. You shall require that your sub-agents, directors, officers, and employees who have access to Nonpublic Personal Financial Information agree in writing to the same restrictions and conditions that apply to you.

2. ACE and Business Associate Designations under HIPAA.

2.1. You acknowledge that the Companies, with respect to the health care components of each Company, (such health care components of a Company shall be referred to as the "Covered Entity" and collectively the "Covered Entities"), have elected to adopt Affiliated Covered Entity ("ACE") status, as defined and permitted under the Health Insurance Portability and Accountability Act of 1996, as amended by the Health Information Technology for Economic and Clinical Health (HITECH) Act, and its implementing regulations set forth at 45 C.F.R. Parts 160 and 164, which include the Privacy, Security, Breach Notification and Enforcement Rules (collectively "HIPAA"), such designation has been appropriately adopted and documented, and any Company is authorized to enter into a Business Associates Agreement on behalf of some or all other members of such ACE. To the extent the HIPAA covered health care component of any such member of the ACE merges with another affiliate or undergoes a corporate name change, this Agreement shall apply to any such merged and/or renamed component/company.

2.2. You further acknowledge that in your provision of services to the Covered Entities you are a "Business Associate" as defined in 45 C.F.R. §160.103 and as a Business Associate you are directly subject to HIPAA, including, but not limited to, its provisions relating to security (45 C.F.R. §§164.308, 164.310, 164.312 and 164.316) and privacy of Protected Health Information as well as its enforcement and penalty provisions.

3. Compliance with HIPAA. With respect to your use and disclosure of Protected Health Information (as defined below), you shall comply with the requirements of HIPAA. Compliance with HIPAA includes, but is not limited to, the DP Framework provisions set forth in Exhibit B and the following:

3.1. You shall use or disclose only the minimum necessary amount of Protected Health Information to perform your services and as specifically permitted under this Agreement, for the proper management and administration of your business (other than for cross-marketing and/or cross-selling of other policies or products, which are prohibited except to the extent specifically provided in Section 4.3 below), to carry out your legal responsibilities, and otherwise as required by law. "Protected Health Information" or "PHI" has the same meaning as the term "protected health information" in 45 C.F.R. §164.103 and shall include as appropriate Electronic Protected Health information as defined in 45 C.F.R. §164.103, limited to information that you create or that you receive from us or on our behalf, and includes information that relates to the past, present, or future physical or mental health or condition of a policyholder, to the provision of health care to a policyholder, or to the past, present, or future payment for the provision of health care to a policyholder, and that identifies the policyholder or for which there is a reasonable basis to believe that the information can be

used to identify the policyholder, in each case regardless of whether the policyholder is living or deceased. By way of illustration only, the following information shall constitute Protected Health Information with respect to a policyholder: (A) name, (B) street address, city, county, precinct, and zip code, (C) dates directly related to the policyholder, including birth date, admission date, discharge date, and date of death, (D) telephone numbers, fax numbers, and electronic mail addresses, (E) social security number, (F) medical record numbers, (G) health plan beneficiary numbers, (H) account numbers, (I) certificate/license numbers, (J) vehicle identifiers and serial numbers, including license plate numbers, and (K) any other unique identifying numbers, characteristics, or codes.

3.2. You may not use or disclose Protected Health Information in any manner that would constitute a violation of HIPAA if we used or disclosed the information in the same manner.

3.3. You may not aggregate or de-identify Protected Health Information without obtaining Covered Entity's prior express written permission.

3.4. You shall comply with our request to accommodate a policyholder's access to his or her Protected Health Information as provided by 45 C.F.R. §164.524.

3.5. You shall comply with our request to amend Protected Health Information in accordance with a policyholder's request as provided by 45 C.F.R. § 164.526.

3.6. You shall keep an accounting of disclosures of or access to Protected Health Information that must be provided under 45 C.F.R. § 164.528 to an individual to whom the Protected Health Information relates. You shall comply with any request that we make to provide us with information pertaining to such disclosures or access in such format as we reasonably may request. Such provided information shall include the content as required under HIPAA.

3.7. You shall make your internal practices, books, and records relating to uses and disclosures of Protected Health Information available to us (or to our designee) and to the Secretary of the U.S. Department of Health and Human Services (the "Secretary"), or to the Secretary's designee, for the purpose of confirming your compliance and/or our compliance with HIPAA.

3.8. Upon termination of this Agreement, if feasible, you shall return or destroy all Protected Health Information without retaining any copies and shall provide us with your written and signed certification to that effect. If such return or destruction is not feasible, you shall notify us and shall limit all further uses and disclosures to those purposes that make such return or destruction of the Protected Health Information not feasible.

3.9. You shall maintain appropriate, but no less than those set forth in Exhibit B, administrative, physical and technical safeguards to prevent prohibited uses or disclosures, and to protect the confidentiality, integrity and availability, of any Protected Health Information that you create, receive, maintain or transmit. Such safeguards shall include development, implementation, and maintenance of a comprehensive written information security program compliant with applicable laws and designed to: (A) protect the integrity and confidentiality of Protected Health Information, (B) protect against anticipated threats or hazards to the security, confidentiality and/or integrity of Protected Health Information, (C) protect against any unauthorized disclosure or use of Protected Health Information, (D) address computer and network security, (E) address physical security, and (F) provide for the secure disposal and destruction of Protected Health Information.

3.10. You shall ensure that any subcontractors (as defined in 45 C.F.R. § 160.103) that create, receive, maintain, or transmit Protected Health Information on your behalf agree to the same restrictions and conditions that apply to you with respect to such information. You agree to enter into appropriate written agreements outlining these obligations and to obtain satisfactory assurances (as that term is contemplated in HIPAA) of such compliance by all subcontractors. To the extent you make disclosures under 45 C.F.R. § 164.504(e)(4), you will obtain reasonable assurances that PHI will be held in confidence and will not be used or disclosed outside of the intended purpose.

3.11. To the extent that we may require you to carry out Covered Entities' obligations in accordance with the Agreement, under 45 C.F.R. § 164 Subpart E, you will comply with the requirements of that Subpart which apply to covered entities in the performance of such obligations.

3.12. You shall require that your directors, officers, and employees who have access to Protected Health Information agree to the same restrictions and conditions that apply to you with respect to such information.

3.13. You will not act in any way to interfere with or hinder the Covered Entities' ability to comply with HIPAA.

3.14. You shall notify the Covered Entities without unreasonable delay and in any event within three (3) business days of discovering a "security incident," as the term "security incident" is defined in 45 C.F.R. § 164.304 (note however that this term shall not include trivial incidents that occur on a daily basis, such as

scans, pings, or unsuccessful attempts to penetrate computer networks or servers maintained by you) or "breach," as the term "breach" is defined in 45 C.F.R. § 164.402, and as the terms "breach" and "discover" are further described in 45 C.F.R. § 164.410. You agree to cooperate fully with us in any security-incident or breach investigation or resolution and agree that no notifications or communications to any individual(s), media outlets, state or federal regulatory authorities, or other third parties regarding the security incident or breach shall be made without in each instance our specific prior written consent.

3.15. You shall mitigate, to the extent practicable, any harmful effect that is known to you of: (i) a use or disclosure of Protected Health Information by you or your agents or subcontractors, in violation of the requirements of this Agreement, or (ii) any security incident or breach.

3.16. In the event either party learns of a pattern of activity or practice of the other party that constitutes a material breach or violation of its obligations relating to Protected Health Information under the Agreement, the non-breaching party will take reasonable steps to cure the breach or end the violation. If such steps are unsuccessful, the non-breaching party will terminate the Agreement, if feasible, or if termination is not feasible, report the problem to the Secretary. We reserve the right, in our sole discretion, to terminate this Agreement immediately upon notice in the event of any such material breach or security incident.

3.17. You acknowledge and agree to adhere to any limitations on the disclosure, marketing and/or sale of Protected Health Information as required under 45 C.F.R. § 164.508 and/or as otherwise set forth in HIPAA.

3.18. You acknowledge and agree that the Protected Health Information is and shall remain the Covered Entity's property and that you acquire no title or rights to the Protected Health Information as a result of this Agreement.

4. Miscellaneous and Additional Provisions Relating to Confidentiality Generally, GLBA, and HIPAA.

4.1. In response to an unsolicited direct policyholder, certificateholder, or consumer inquiry, you may disclose Nonpublic Personal Financial Information and Protected Health Information directly to, and may discuss such information directly with, the policyholder, certificateholder, or consumer to whom such information pertains, provided that such disclosure would not violate HIPAA if we made it.

4.2. We acknowledge that you may have relationships with affinity groups and associations and that, as a result, you may receive information ("Group Member Information") relating to their members (each a "Group Member") that constitutes Nonpublic Personal Financial Information and/or Protected Health Information. You and we agree that a Group Member's Group Member Information shall constitute Nonpublic Personal Financial Information and/or Protected Health Information only from and after the time that a Group Member applies for a Policy.

4.3. You may use Nonpublic Personal Financial Information and/or Protected Health Information for cross-marketing and/or cross-selling of other policies or products to the extent, but only to the extent, that the policyholder, certificateholder, or consumer to whom such information pertains has authorized you specifically in a writing that complies with GLBA and/or HIPAA, as applicable, to do so and such marketing and selling is conducted in adherence with the restrictions on marketing and sale of Nonpublic Personal Financial Information and/or PHI as provided under GLBA and/or HIPAA.

4.4. Any ambiguity in this Agreement shall be resolved in favor of a meaning that permits compliance with GLBA and HIPAA.

4.5. You shall train your employees who have access to Nonpublic Personal Financial Information and/or Protected Health Information and educate them about your obligations and permitted uses and disclosures under this Agreement, GLBA and HIPAA.

4.6. You shall comply with all applicable Federal, State and local laws and regulations enacted to protect the privacy of individual personal information.

4.7. We can further amend this Exhibit A without your consent to reflect (i) future amendments of GLBA or HIPAA, (ii) court orders interpreting the application of GLBA or HIPAA, or (iii) a material change in our business practices, but any such amendment shall be enforceable against you only after we have notified you.

4.8. Covered Entity shall notify you of any limitation(s) in its notice of privacy practices of Covered Entity in accordance with 45 CFR § 164.520, to the extent that such limitation may affect your use or disclosure of PHI.

4.9. Covered Entity shall notify you of any changes in, or revocation of, permission by an individual to use or disclose PHI, to the extent that such changes may affect your use or disclosure of PHI.

4.10. Covered Entity shall notify you of any restriction to the use or disclosure of PHI that Covered Entity has agreed to in accordance with 45 CFR § 164.522, to the extent that such restriction may affect your use or disclosure of PHI.

4.11. Any reference in this Agreement to a section in the GLBA or HIPAA means the section as in effect or as amended and/or superseded from time to time.

EXHIBIT B

DATA PROTECTION FRAMEWORK

This Data Protection Framework (“DP Framework”) outlines the obligations between you and the Company as it relates to your Processing of Protected Information under the Agreement to which this DP Framework is attached (“Agreement”).

1. Definitions. For purposes of this DP Framework:

1.1. *Affiliate* means any legal entity that directly or indirectly controls, is controlled by, or that is under common ownership or control with a party.

1.2. *Applicable DP Law* means any privacy, security, or other related law or regulation (including any amendments or binding subregulatory guidance related thereto) that protects Company information or relates to Processing. Such laws may include, but are not limited to: the California Consumer Privacy Act; the New York Department of Financial Services Cybersecurity Rule; the Health Insurance Portability and Accountability Act of 1996; the Gramm-Leach-Bliley Act; and the Fair Credit Reporting Act. Applicable DP Law includes Mandatory Use Restrictions as defined below.

1.3. *Consumer Request* means any request by an individual with respect to any Personal Information Processed under the Agreement, seeking information or asserting rights available under Applicable DP Laws; such requests include, but are not limited to requests: for opt-outs; for access, portability, or deletion; to identify or provide details regarding information Processed; and all similar requests under Applicable DP Laws.

1.4. *Cybersecurity Event* means any act or attempt, successful or unsuccessful, to gain unauthorized access to, disrupt, or misuse a system containing Protected Information; provided, however, that a Cybersecurity Event will not include trivial and routine incidents such as port scans, pings, and other broadcast attacks, so long as they do not materially affect the confidentiality, availability, or integrity of the system or the Protected Information in the system.

1.5. *Personal Information* means, in addition to any definition under Applicable DP Law, any personally identifiable information that identifies, relates to, describes, is capable of being associated with, or could reasonably be linked, directly or indirectly, to any individual or a household, including, but not limited to: name; email address; telephone number; age; date of birth; gender; demographic information; marketing preferences; social security number; alien identification number; credit and debit card numbers; other financial account numbers; application data; credit history; financial information; driver's license number; other unique identifier or authenticator; health insurance or medical information; biometric information; IP addresses; internet or other electronic network activity information; geolocation data; audio, electronic, visual, thermal, olfactory or similar information; professional or employment information; education information; consumer report information; and data about transactions or experiences with the Company or any marketing partner of the Company. The term “individual” for purposes of this definition includes any natural person who has any form or relationship to the Company.

1.6. *Process, Processed or Processing* includes any access to, and/or any collection, receipt, use, disclosure, sharing, transmission, disposal, maintenance, or storage of Protected Information under the Agreement.

1.7. *Protected Information* means any Company information Processed by you that is subject to Applicable DP Law, which includes but is not limited to Sensitive Business Information and Personal Information

1.8. *Sensitive Business Information* means the business related information of the Company that, if tampered with or disclosed without authorization, could cause a material adverse impact on the business, operations, or security of the Company.

1.9. *Services* means any and all services provided by you under the Agreement.

2. Processing of Protected Information. The following provisions shall apply to you in the course of performing Services:

2.1. *Use Limitations.* You will only Process Protected Information in accordance with Applicable DP Law and the terms of the Agreement, and this DP Framework.

2.2. *Minimum Necessary.* You will limit your Processing of Protected Information to only the information

that is necessary to perform the Services.

2.3. Access Limitations. You will limit access to Protected Information to only those individuals who have a need to know such Protected Information to perform the Services. You will instruct all such individuals as to the obligations set forth in this DP Framework and shall be responsible for their compliance thereto.

2.4. Sale of Protected Information. You will not sell any Protected Information to any third party. "Sell", for purposes of this Section, is as defined under any Applicable DP Law.

2.5. Consumer Requests. You will comply with the "Consumer Requests" provisions of this DP Framework, set forth in Section 3.

2.6. Use of Subcontractors. Nothing in this DP Framework modifies any limitation on your use of subcontractors, or any rights for the Company to audit or participate in an audit of your subcontractors, to the extent such rights are present in the Agreement. Wherever you are permitted and use any subcontractors in the performance of the Services, you will require that such subcontractors agree in writing to terms no less stringent than those set forth in this DP Framework. You will further ensure that any such subcontractors who Process Protected Information, regardless of whether the Company permits or authorizes such subcontractor, are bound to equivalent terms. In all situations where you use subcontractors to perform Services involving Protected Information, you will remain responsible for all obligations set forth in this DP Framework and any violations thereof.

2.7. Disposal of Protected Information. You will, upon termination of the Agreement or as otherwise provided in this DP Framework, securely return or destroy all records, electronic or otherwise, containing any Protected Information. Disposal may be achieved, at the Company's option, through delivery all copies of such records to the Company or through destruction in a manner that renders the records unreadable and undecipherable by any means consistent with Applicable DP Law. Upon the Company's request, you will provide written confirmation of the disposal of Protected Information consistent with this Section.

2.8. Notification of Legal Requests for Protected Information. You shall notify the Company as soon as reasonably practicable upon receipt of a lawful legal order or process compelling the disclosure of Protected Information to any governmental authority or other third party. You will not disclose Protected Information in response to a lawful legal order or process (a "Production Request") without providing the Company at least forty-eight (48) hours following your notice to enable the Company to exercise such rights as it may have under applicable law to prevent or limit such disclosure. You shall exercise commercially reasonable efforts to prevent and limit any such disclosure and to otherwise preserve the confidentiality of the Protected Information, and will cooperate with the Company with respect to any action taken with respect to such Production Request, including to obtain an appropriate protective order or other reliable assurance that confidential treatment will be afforded to the Protected Information. Notwithstanding the foregoing, you will be excused from complying with this Section to the extent expressly prohibited by applicable law.

2.9. Mandatory Use Restrictions. If and to the extent the Company is currently or subsequently designated under any Applicable DP Law or other applicable law as a controller, processor, fiduciary, data fiduciary or is otherwise mandated to impose limitations on the use or Processing of Protected Information ("Mandatory Use Restrictions"), the Company shall inform you of such designation and such Mandatory Use Restrictions in writing and you shall be bound by and shall follow all such Mandatory Use Restrictions as specified by the Company as amended from time to time.

3. Consumer Requests. The following applies to Consumer Requests:

3.1. If, on or after January 1, 2020, you receive one or more inquiries regarding the submission of a Consumer Request pertaining to any Personal Information Processed, the parties agree that you shall, at no additional cost, contemporaneously direct the inquiring party to both the Company's dedicated toll free number of 1-877-247-2401 and website (www.transamerica.com) in order to allow the individual to begin the Consumer Request submission process. Further, you shall direct any individual who has already submitted a Consumer Request to the Company's dedicated toll-free number of 1-877-247-2401 and website, www.transamerica.com in order to allow the individual to follow-up directly with the Company on the status of the submitted Consumer Request.

3.2. Where you receive a complaint related to the Personal Information Processed, including, but not limited to, allegations that the Processing infringes on an individual's rights under Applicable DP Law ("Processing Complaint"), you will promptly (and in all cases within two (2) business days of receipt), notify

the Company of such a Processing Complaint in writing, unless such notices specifically prohibited by Applicable DP Law.

3.3. You will at no additional cost: (a) assist the Company in timely responding to any Consumer Requests or Processing Complaints and reasonably cooperate and facilitate the Company's timely authentication, recording, investigation, processing, execution, and resolution of all such Consumer Requests and Processing Complaints, as well as authenticating the consumer, where appropriate; and (b) securely provide any information requested by the Company that is reasonably responsive to a Consumer Request as soon as reasonably practicable, but in all cases within five (5) business days.

3.4. In the event you receive a request that is not a Consumer Request (i.e., it does not relate to the Personal Information Processed), the parties agree that such request will be subject to your own internal business practices, and is not subject to the terms of this DP Framework.

4. Information Security Requirements. You will comply with the following cybersecurity requirements where you Process any Protected Information:

4.1. *Risk Assessment.* You agree to furnish all information reasonably requested by the Company in order to conduct an assessment of your data security risks. Such information may include a comprehensive information security questionnaire ("Questionnaire"), excerpts of relevant information security policies describing components of your Cybersecurity Program, and/or any other information agreed upon by the parties. The Company agrees to limit its requests for a Questionnaire to no more frequently than once per calendar year, provided that the Company may request additional relevant information at any time, and the Company may request a new or updated Questionnaire in response to a Cybersecurity Event experienced by you and/or the identification of any practices that materially deviate from information previously submitted by you. The Company may request reasonable additional information as it determines, in its own reasonable discretion, that it requires in order to conduct appropriate oversight of you, as required by applicable law. You will promptly and fully respond to such requests.

4.2. *Minimum Cybersecurity Requirements ("Requirements").* With respect to any information technology systems involved in the Processing of Protected Information, you represent and warrants that you will at all times have and maintain an information security program (the "Cybersecurity Program") containing administrative, technical, and physical safeguards designed to ensure the security of Protected Information. Such Cybersecurity Program will be based upon and substantially consistent with industry-accepted cybersecurity principles and practices, and shall, at a minimum, incorporate the minimum requirements shown on Attachment 1 applicable to the Services; provided, however, that the Company may impose requirements above the stated minimums based on your information security controls and related matters. In addition to those minimum requirements, you shall perform the following:

4.2.1. *Encryption at Rest.* Any Protected Information stored in your internal systems and devices must be encrypted using then-current and appropriately secure encryption algorithms, tools, and techniques.

4.2.2. *Cybersecurity Event Response.* You will provide notice to Company as soon as reasonably practicable, but in any event within forty-eight (48) hours, following identification of a Cybersecurity Event. Such notice will include information reasonably sufficient to allow the Company to meet its own breach notification obligations under Applicable DP Law, to the extent such information is then available, and will at a minimum describe the nature and scope of the Cybersecurity Event and any Protected Information involved in the Cybersecurity Event. If any such information is not available as of the initial notice, you will furnish such information promptly upon obtaining it. You agree to provide additional information related to the Cybersecurity Event where reasonably requested by the Company. Following such notice to the Company, you will take such steps as reasonably necessary to contain, investigate, mitigate, and remediate any Cybersecurity Event affecting Company information technology systems and/or Protected Information, including remediation of any underlying failures or vulnerabilities. Where the Company determines in its sole discretion that it is necessary to participate in the investigation of a Cybersecurity Event, you will reasonably cooperate with the Company in such investigation. You agree to furnish artifacts evidencing your remediation of all underlying failures and/or vulnerabilities identified in a Cybersecurity Event and you agree that the confidentiality obligations of the Agreement are satisfactory to the sharing of the artifacts and other materials shared with respect to the Cybersecurity Event and your remediation.

4.2.3. *Subcontractor Requirements and Oversight.* Your Cybersecurity Program will include oversight by you of your subcontractors and their compliance with the applicable requirements of your Cybersecurity Program wherever the Processing of Protected Information occurs. You will require that such

subcontractors agree in writing to cybersecurity requirements no less stringent than the Requirements.

4.3. *Alternate Controls.* Where the parties reasonably agree that any Requirement is unduly onerous in light of the Services provided and the risks to Protected Information, the parties will work together in good faith to determine whether appropriate alternative compensating controls may be used to meet the spirit and goals of the Requirements, or if a Requirement may be waived entirely, provided that in all cases, use of alternative compensating controls and/or any waiver of a Requirement is subject to the Company's sole discretion and any conditions thereon imposed by the Company.

4.4. *Audit.* Unless and to the extent otherwise agreed in the Agreement, you agree to permit the Company to conduct reasonable cybersecurity audits on you, within reasonable business hours and upon reasonable advance written notice, to confirm your compliance with this DP Framework. Cybersecurity audits by the Company will be limited to no more frequently than once per calendar year, provided that the Company may conduct additional targeted audits ("Targeted Audits") in response to (a) a Cybersecurity Event, (b) any identified material deviation from your Cybersecurity Program, a Requirement, or an agreed-upon alternative compensating control, or (c) any other material inaccuracy or misrepresentation about the controls and/or underlying risks applicable to Protected Information made by you. Each party will bear its own costs with respect to such audits, except for Targeted Audits, in which cases you will reimburse the Company for its reasonable, direct, out-of-pocket costs incurred in the course of the audit.

4.5. *SOC 2 Type II Reports.* Where available, you will furnish a copy of a current System and Organizations Controls 2, Type II report (Report on Controls at a Service Organization Relevant to Security, Availability, Processing Integrity, Confidentiality or Privacy) or equivalent direct successor report (a "SOC 2 Type II"), including a description of the trust services criteria or principles assessed and any scope limitation under such report. Subject to the Company's reasonable review and acceptance of your submitted SOC 2 Type II report, the Company's audit right under this DP Framework will be deemed satisfied by the SOC 2 Type II report, but only with respect to those controls assessed within the defined scope of the report. The Company may also, at its sole option, agree to accept an alternative third-party assessment or certification of your Cybersecurity Program, such as a PCI-DSS Attestation of Compliance or HITRUST certification, in lieu of exercising its right (or some portion of that right) to audit.

5. General Provisions.

5.1. *Effect on Agreement.* The requirements of this Framework are in addition to, and supplement, any terms set forth in the Agreement with respect to the subject matter hereof except to the extent such terms contained are less stringent than set forth herein. To the extent of a conflict between this DP Framework and the Agreement, the standard that is most protective of Protected Information shall control. This DP Framework shall not supersede or replace any HIPAA business associate contract between the parties. All other terms and conditions of the Agreement shall remain in full force and effect. All attachments referenced herein or attached hereto are incorporated herein in full by this reference

5.2. *Compliance with Law.* Each party to this DP Framework agrees to comply with all applicable law, including Applicable DP Laws. No party hereunder may request any other party to use or disclose Protected Information in a manner that violates such laws.

5.3. *Injunctive Relief.* You acknowledge that a breach of this DP Framework will cause the Company irreparable harm without an adequate remedy at law, and that the Company is entitled to seek injunctive relief to prevent or limit the effect of any such breach.

5.4. *Your Express Certification and Agreement.* By executing the Agreement to which this DP Framework is attached, you certify that you understand and agree to the provisions set forth in this DP Framework will comply with the terms hereof.

DATA PROTECTION FRAMEWORK

ATTACHMENT 1 – MINIMUM CYBERSECURITY REQUIREMENTS

Type	Processes	Transacts	Stores	Systems or software	Agents with no connection to a larger organization			
A	Yes	Yes	Yes	Yes	No			
B	Yes	Yes	Yes	No	No			
C	Yes	Yes	No	No	No			
D	Yes	Yes	Yes	Yes	Yes			
Type	Abbreviated	Description						
A	Large Interactive Third Party	Third Party processes, transacts or stores Company Protected Information (including intellectual property, such as software development design information and code.)						
B	Large with no systems or software provided	Third Party processes, transacts or stores Company Protected Information, but provides no system or application development services.						
C	Large, does not store data	Third Party processes, transacts Company Protected Information, but does not store any Company Protected Information.						
D	Agents	Agents that process, transact or store Company Protected Information, and is not part of, or does not connect to a larger organizational third party network.						
Security Control Requirements					A	B	C	D
Have a documented Information Security Program.					Yes	Yes	Yes	
Conform to an acceptable industry security standard.					Yes	Yes	Yes	
Review security program annually or whenever there is a material change.					Yes	Yes	Yes	
Regular cybersecurity awareness training.					Yes	Yes	Yes	
Employees and vendors have a background check prior to employment.					Yes	Yes	Yes	Yes
Vendor employees adhere to cybersecurity requirements.					Yes	Yes	Yes	
Ensure subcontractors comply with all cybersecurity policies and procedures					Yes	Yes	Yes	
All assets are evaluated for security standards before implementation.					Yes	Yes	Yes	
Grant access with the least privilege needed for sensitive information and with appropriate ownership approval.					Yes	Yes	Yes	Yes
Review of access to ensure segregation of duties.					Yes	Yes	Yes	
Ensure unauthorized users are prevented from gaining access information. Multi-Factor Authentication (MFA) is used where appropriate and for incoming remote connections.					Yes	Yes	Yes	Yes
Password settings use current industry standards.					Yes	Yes	Yes	Yes
Account and password management security configurations.					Yes	Yes	Yes	
Privileged accounts are secured and monitored.					Yes	Yes	Yes	
Information asset are destroyed according to their assigned classification.					Yes	Yes	Yes	
Information assets are classified to indicate the ownership, roles, and sensitivity.					Yes	Yes		
End user devices and internal systems, where Company data may be stored, are encrypted.					Yes	Yes	Yes	

EXHIBIT C
NY 187 Disclosure Template



For sales transactions in New York (TFLIC policies)

Print Consumer Name: _____

Producer Representation under New York Regulation 187

In recommending this annuity or life insurance sales transaction to the consumer, I have acted in the best interest of the consumer. The recommendation is based on an evaluation of the relevant suitability information of the consumer and reflects the care, skill, prudence, and diligence that a prudent person acting in a like capacity and familiar with such matters would use under the circumstances then prevailing. Only the interests of the consumer have been considered in making the recommendation. The sales transaction is suitable, and I have a reasonable basis to believe that:

- (a) the consumer has been reasonably informed of various features of the policy and potential consequences of the sales transaction, both favorable and unfavorable;
- (b) the consumer would benefit from certain features of the policy; and
- (c) the particular policy as a whole, the underlying subaccounts to which funds are allocated at the time of the sales transaction, and riders and similar product enhancements, if any, are suitable for this consumer based on the consumer's suitability information.

I have:

- (a) weighed multiple factors that are relevant to the best interests of the consumer including, but not limited to, the benefits provided by the policy, the price of the policy, the financial strength of the insurer, and other factors that differentiate products or insurers;
- (b) at the time of this recommendation, disclosed to the consumer in a reasonable summary format all relevant suitability considerations and product information, both favorable and unfavorable, that provide the basis for the recommendation; and
- (c) documented the basis for the recommendation made.

The following representation is made if the recommended transaction is a replacement of a policy (as defined in New York Insurance Law):

This replacement is suitable including taking into consideration whether:

- (a) the consumer will incur a surrender charge, increased premium or fees, decreased coverage duration, decreased death benefit or income amount, adverse change in health rating, be subject to the commencement of a new surrender period, lose existing benefits (such as death, living or other contractual benefits), be subject to tax implications if the consumer surrenders or borrows from the policy, or be subject to increased fees, investment advisory fees, premium loads or charges for riders and similar product enhancements;
- (b) the consumer would benefit from policy enhancements and improvements, such as a decreased premium or fees, increased coverage duration, increased death benefit or income amount; and
- (c) the consumer has had another policy replacement, in particular, a replacement within the preceding 36 months.

Producer's signature

Date: _____

Print producer's name